London Borough of Camden and London Borough of Camden Electoral Registration Officer

Memorandum of Understanding For the purpose of data sharing Between the Council Tax Team and the Electoral Registration Officer

The London Borough of Camden Electoral Registration Officer is legally a different Data Controller to the London Borough of Camden but in practice is the same organisation. This Memorandum is non-binding but sets out the intentions of both data controllers to further the lawful purpose described below, aid appropriate information sharing, and safeguard the integrity and confidentiality of the data concerned. In the circumstances both data controllers agree that due to the close and intertwined nature of the relationships and processing, that a formal Data Sharing Agreement is disproportionate and that a MoU will suffice.

It is agreed that the Electoral Registration Officer requires the personal data, detailed below, held by Council Tax to properly undertake their statutory duty to compile and maintain a register of electors. This Memorandum of Understanding sets out the respective roles of the parties and the conditions under which the data sharing is permitted.

The data will be provided to the Electoral Registration Officer to an email address/es nominated by them. It will be provided in excel format by Council Tax. An initial data set will be provided by 7th August 2023 and thereafter in mid-June and mid-November.

The fields will include:

- Property reference (key as this should match the UPRN)
- If property is recorded as a second home or not (sheet will show as second home)
- Date property became empty
- Liable party name
- Forwarding address of that liable party
- Empty property address
- Empty exemption type (reason why empty)

Exemption type is required because it will allow Electoral Registration to take appropriate action. For example, left by a deceased person allows removal from the register. However, if was standard empty follow up may be required as a property could become occupied before the end of canvass. Knowing about second homes helps Electoral Registration to not chase properties with no permanent resident.

The Electoral Registration Officer confirms that the information requested comes within the scope of their legal powers in the Representation of the People (England & Wales) Regulations 2001 and that all those who will handle the disclosed data are bound by the employee code of conduct, have undergone appropriate employee checks as necessary for the role, will only use the information for purposes of their role and no other, will not share the information gained with other services or agencies (save where required to do so by law e.g. safeguarding duties, by court order or with the courts or as part of legal proceedings), and that breach of these conditions may result in disciplinary action for breach of the code of conduct.

Agreed:

[redacted]

Name Mark Stewart

Position Head of Council Tax, Business Rates and Benefits

Date: 4 August 2023

Agreed:

[redacted]

Name: Jeanette Pegler

Position: Elections Manager

Date: 03/08/23